

23SMCV02791 23SMCV02791

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-09-24

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BH%20%2C207%2C09%2F24%2F2026

Source SHA-256: db8537e2006332194c810f6438c8f90471e53abdff692c7d510428716edcb2e8

Case Number: 23SMCV02791 Hearing Date: September 24, 2026 Dept: 207

TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

September

24, 2026

CASE NUMBER

23SMCV02791

MOTION

Motion

for Summary Judgment/Summary Adjudication

MOVING PARTIES

Defendants City National Bank, N.A.,

Jennifer Rueda, and Chad Gordon

OPPOSING PARTY

Plaintiff

Kimberly Tucker

MOVING PAPERS:

Notice

of Motion and Motion for Summary Judgment/Summary Adjudication;

Memorandum

of Points and Authorities

Declaration

of Bradley E. Jewett

Declaration

of Jennifer Rueda

Declaration

of Albert Aguilar

Declaration

of Chad Gordon

Declaration

of Ava Wiggins

Request

for Judicial Notice

Compendium

of Exhibits

Separate

Statement of Undisputed Material Facts

OPPOSITION PAPERS:

Memorandum of Points and

Authorities in Opposition to Motion for Summary Judgment/Summary Adjudication

Separate Statement in Opposition
to Motion for Summary Judgment/Summary Adjudication

Declaration of Girma H. Gebriel

Evidentiary Objections

Declaration of Kimberly Tucker

Compendium of Exhibits

REPLY PAPERS:

Reply
in Support of Motion for Summary Judgment/Summary Adjudication

Evidentiary
Objections

BACKGROUND

This case arises from allegations that Defendants City National Bank N.A. ("CNB"); Chad Gordon ("Gordon"); Jennifer Rueda ("Rueda"); and Bob Martinez ("Martinez") (together, "Defendants") discriminated against Plaintiff Kimberly Tucker ("Plaintiff") when Plaintiff attempted to open a bank account.

Plaintiff's business entity previously filed suit against Defendant City National Bank, N.A., alleging (1) race and color discrimination; (2) retaliation; (3) failure to prevent discrimination and retaliation; (4) unfair business practices; (5) intentional infliction of emotional distress; and (6) fraud and deceit for allegedly discriminating against it three times in five years for exercising its "freedom of speech" by "making a complaint about being mistreated." (See LAX Snak Trak Vending v. City National Bank, Los Angeles Superior Court Case No. 23STCV00130.)

The Court sustained Defendant's unopposed demurrer to the 2023 complaint with leave to amend, on the basis that it was uncertain, and noted that Plaintiff cannot appear or file pleadings in pro per on behalf of

the business, which can only be represented by a licensed attorney. (Case No. 23STCV00130, May 11, 2023 Minute Order.) Upon the entity's failure to timely amend, the Court granted Defendant's ex parte application to dismiss for failure to prosecute.

On June 22, 2023, Plaintiff filed the subject complaint. In the operative Second Amended Complaint ("SAC"), Plaintiff alleges nine causes of action as follows:

1.

Violation of the Unruh Act

2.

Race Discrimination in violation of 42 U.S.C. 1981

3.

Violation of Unfair Competition Law

4.

Negligence Per Se

5.

Negligence Per Se

6.

Negligence Per Se

7.

Negligent Failure to Train

8.

Negligent Infliction of Emotional Distress

9.

Intentional Infliction of Mental and Emotional Distress

On May 7, 2025, the Court granted CNB's motion for evidentiary sanctions, due to Plaintiff's repeated refusal to sit for deposition without substantial justification and in defiance of the Court's repeated discovery related orders. In granting the motion, the Court precluded Plaintiff from presenting any of her own written or oral

testimony at trial.

Moving Defendants CNB, Rueda, and Gordon now move for summary judgment, or in the alternative summary adjudication of the following issues:

Cause of Action No. 1 -- There are no triable issues of material fact, and Defendants are entitled to judgment as a matter of law with respect to Plaintiff's first cause of action for Violation of the Unruh Act (Civil Action § 51 et seq.), on the following grounds: (a) the cause of action is barred by the applicable statute of limitations; (b) Plaintiff lacks legal standing to bring the cause of action; (c) Plaintiff lacks admissible evidence to prove her cause of action at trial and is precluded from offering written or oral testimony; and (d) there are no disputed issues of material facts.

Cause of Action No. 2 -- There are no triable issues of material fact, and Defendants are entitled to judgment as a matter of law with respect to Plaintiff's second cause of action for Race Discrimination in Violation of 42 U.S.C. 1981, on the following grounds: (a) the cause of action is barred by the applicable statute of limitations; (b) Plaintiff lacks legal standing to bring the cause of action; (c) Plaintiff lacks admissible evidence to prove her cause of action at trial and is precluded from offering written or oral testimony; and (d) there are no disputed issues of material facts.

Cause of Action No. 3 -- There are no triable issues of material fact, and Defendants are entitled to judgment as a matter of law with respect to Plaintiff's third cause of action for Violation of Unfair Competition Law (Business & Professions Code 17200 et seq.), on the following grounds: (a) the cause of action is barred by the applicable statute of limitations; (b) Plaintiff lacks legal standing to bring the cause of action; (c) Plaintiff lacks admissible evidence to prove her cause of action at trial and is precluded from offering written or oral testimony; and (d) there are no disputed issues of material facts.

Cause of Action No. 4 -- There are no triable issues of material fact, and Defendants are entitled to judgment as a matter of law with respect to Plaintiff's fourth cause of action for Negligence (Negligence Per Se), on the following grounds: (a) the cause of action is barred by the applicable statute of limitations; (b) Plaintiff lacks legal standing to bring the cause of action; (c) Plaintiff lacks admissible evidence to prove her cause of action at trial and is precluded from offering written or oral testimony; and (d) there

are no disputed issues of material facts.

Cause of Action No. 5 -- There are no triable issues of material fact, and Defendants are entitled to judgment as a matter of law with respect to Plaintiff's fifth cause of action for Negligence (Negligence Per Se), on the following grounds: (a) the cause of action is barred by the applicable statute of limitations; (b) Plaintiff lacks legal standing to bring the cause of action; (c) Plaintiff lacks admissible evidence to prove her cause of action at trial and is precluded from offering written or oral testimony; and (d) there are no disputed issues of material facts.

Cause of Action No. 6 -- There are no triable issues of material fact, and Defendants are entitled to judgment as a matter of law with respect to Plaintiff's sixth cause of action for Negligence (Negligence Per Se), on the following grounds: (a) the cause of action is barred by the applicable statute of limitations; (b) Plaintiff lacks legal standing to bring the cause of action; (c) Plaintiff lacks admissible evidence to prove her cause of action at trial and is precluded from offering written or oral testimony; and (d) there are no disputed issues of material facts.

Cause of Action No. 7 -- There are no triable issues of material fact, and Defendants are entitled to judgment as a matter of law, with respect to Plaintiff's seventh cause of action for Negligence (Failure to Train), on the following grounds: (a) the cause of action is barred by the applicable statute of limitations; (b) Plaintiff lacks legal standing to bring the cause of action; (c) Plaintiff lacks admissible evidence to prove her cause of action at trial and is precluded from offering written or oral testimony; and (d) there are no disputed issues of material facts.

Cause of Action No. 8 -- There are no triable issues of material fact, and Defendants are entitled to judgment as a matter of law with respect to Plaintiff's eighth cause of action for Negligent Infliction of Mental and Emotional Distress, on the following grounds: (a) the cause of action is barred by the applicable statute of limitations; (b) Plaintiff lacks legal standing to bring the cause of action; (c) Plaintiff lacks admissible evidence to prove her cause of action at trial and is precluded from offering written or oral testimony; and (d) there are no disputed issues of material facts.

Cause of Action No. 9 -- There are no triable issues of material fact, and Defendants are entitled to judgment as a matter of law with respect to

Plaintiff's ninth cause of action for Intentional Infliction of Mental and Emotional Distress, on the following grounds: (a) the cause of action is barred by the applicable statute of limitations; (b) Plaintiff lacks legal standing to bring the cause of action; (c) Plaintiff lacks admissible evidence to prove her cause of action at trial and is precluded from offering written or oral testimony; and (d) there are no disputed issues of material facts.

Plaintiff opposes the motion and
Moving Defendants reply.

REQUEST FOR JUDICIAL NOTICE

Moving Defendants request judicial notice of the following:

1. Complaint in Brivers LAX Snak Trak Vending v. City National Bank, N.A., filed January 4, 2023 in Los Angeles County Superior Court, Case Number 23STCV00130. ("Brivers Action").
2. The Court's May 11, 2023, Order sustaining CNB's Demurrer in the Brivers Action.
3. June 14, 2023, Order dismissing the Brivers Action.
4. Plaintiff Kimberly Tucker's July 25, 2025, Second Amended Complaint in this action.
5. May 7, 2025, Order issuing Evidentiary Sanctions in this action.
6. Complaint in United States of America v. City National Bank, United States District Court, Central District of California, Case Number CV 23-204-DMG (RAOx). (The "Federal Action").
7. January 30, 2023, Consent Order in the Federal Action.

Judicial notice may be taken
of records of any court in this state.
(Evid. Code, § 452, subd. (d)(1).)

Because the above documents are all court records, the Court may take judicial notice of them. (Ibid.) However, “while courts are free to take judicial notice of the existence of each document in a court file, including the truth of results reached, they may not take judicial notice of the truth of hearsay statements in decisions and court files. Courts may not take judicial notice of allegations in affidavits, declarations and probation reports in court records because such matters are reasonably subject to dispute and therefore require formal proof.” (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 882 [cleaned up].)

Accordingly, the Court takes judicial notice of the existence, filing, and legal consequences of the above documents as court documents, but not the truth of the allegations or other hearsay statements contained therein.

EVIDENTIARY OBJECTIONS

The Court rules as follows with respect to Plaintiff’s evidentiary objections:

1. Overruled
2. Overruled
3. Overruled
4. Overruled
5. Overruled
6. Overruled
7. Overruled
8. Overruled
9. Overruled
10. Overruled

11. Overruled

12. Overruled

13. Overruled

14. Overruled

15. Overruled

16. Overruled

17. Overruled

18. Overruled

19. Overruled

20. Overruled

21. Overruled

22. Overruled

23. Overruled

24. Overruled

25. Overruled

26. Overruled

27. Overruled

28. Overruled

29. Overruled

30. Overruled

31. Overruled

32. Overruled

33. Overruled

34. Overruled

35. Overruled

36. Overruled

37. Overruled

38. Overruled

39. Overruled

40. Overruled

41. Overruled

The

Court rules as follows with respect to Moving Defendants' evidentiary objection

1. Sustained

LEGAL STANDARDS – MOTION FOR SUMMARY JUDGMENT/ADJUDICATION

"[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law[.]

There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof."

¿(Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850

(hereafter Aguilar).) ¿"[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence

of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” 2 (Ibid.; Smith v. Wells Fargo Bank, N.A. (2005) 135 Cal.App.4th 1463, 1474 [summary judgment standards held by Aguilar apply to summary adjudication motions].)

Further, “the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court’s evaluation of credibility.” (Aguilar, supra, 25 Cal.4th. at p. 840 [cleaned up]; see also Weiss v. People ex rel. Department of Transportation (2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party”].)

A party may move for summary adjudication as to one or more causes of action, affirmative defenses, claims for damages, or issues of duty if that party contends that there is no merit to the cause of action, defense, or claim for damages, or if the party contends that there is no duty owed. (See Code Civ. Proc., § 437c, subd. (f)(1).) “A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Ibid.) A cause of action has no merit if: (1) one or more elements of the cause of action cannot be separately established, even if that element is separately pleaded, or (2) a defendant establishes an affirmative defense to that cause of action.

(See Code Civ. Proc., § 437c, subd. (n); Union Bank v. Superior Court (1995) 31 Cal.App.4th 573, 583.)

Once the defendant has shown that a cause of action has no merit, the burden shifts to the plaintiff to show that a triable issue of material fact exists as to that cause of action. (See Code Civ. Proc., § 437c, subd. (o)(2); Union Bank v. Superior Court, supra, 31 Cal.App.4th at p.

583.) Additionally, in line with Aguilar,

“[o]n a motion for summary adjudication, the trial court has no discretion to exercise. If a triable issue of material fact exists as to the challenged causes of action, the motion must be denied. If there is no triable issue of fact, the motion must be granted.” (Fisherman’s Wharf Bay Cruise Corp. v. Superior Court (2003) 114 Cal.App.4th 309, 320.)

DISCUSSION

Moving Defendants argue as to all causes of action that Plaintiff's claims are barred by the statute of limitations. A cause of action accrues at the time the wrongful act is done or the wrongful result occurs. (Norgard v. UpJohn Co. (1999) 21 Cal.4th 383, 397.)

Here, Moving Defendants argue that although the Complaint alleges Plaintiff attempted unsuccessfully to open a bank account from 2018 to 2023, the action stems from Plaintiff's failed attempt to open a business account in June 2018. Yet, Plaintiff did not file the subject complaint until June 22, 2023, more than five years later. Thus, regardless of whether the 2-year, 3-year, or 4-year statute of limitations applies, Plaintiff's claims are time barred.

Moving Defendants also argue that Plaintiff lacks standing to bring the instant action, as it involved only an account for her business, but not any accounts in her personal capacity.

Further, Moving Defendants argue that there are no triable issues of material fact that CNB's decision not to open a business account for Plaintiff was based on Plaintiff's behavior and failure to supply them with the necessary information, not racial discrimination, and since all Plaintiff's causes of action are premised on alleged racial discrimination, summary adjudication is appropriate as to all causes of action.

Finally, Moving Defendants argue that Plaintiff cannot oppose this motion by way of her own declaration because of the Court's prior evidentiary rulings, precluding Plaintiff from testifying at trial. (See Perry v. Bakewell Hawthorne, LLC (2017) 2 Cal.5th 536, 543 ["A party may not raise a triable issue of fact at summary judgment by relying on evidence that will not be admissible at trial"].)

a. Moving Defendants' Evidence

In support, Moving Defendants

advance the following evidence:

.

On June

7, 2018, Plaintiff applied for a deposit account on behalf of Brivers LAX Snak Trak Vending at CNB's "Water Garden" branch office in Santa Monica. (UMF No. 1.)

.

CNB's

employees requested information from Plaintiff that she either did not possess or was unwilling to disclose, including proof of a valid physical mailing address. (UMF No. 4.)

.

Plaintiff

expressed her frustration by making insulting and derogatory remarks toward the Garden Branch employees, including threatening one with physical violence. (UMF No. 6-7.)

.

On June

12, 2018, Rueda, who was Vice President and Group Branch Manager at the time, sent Plaintiff a letter advising that the 2018 Application was denied. (UMF No. 8.)

.

On June

22, 2018, Rueda sent Plaintiff a second letter, identifying additional bases for CNB's denial of the 2018 Application. (UMF No. 9.)

.

CNB has

policies for closing potential and/or current accounts for a variety of reasons, including perceived fraud, providing the bank with false identification, uncollected funds, and problematic customer relationship issues. (UMF No. 10.)

.

When CNB

decides to close or not open an account, the client/potential client is placed on a list of individuals/entities with whom CNB does not want to conduct

business in the future. (UMF No. 11.)

.

The June

7, 2018 Incident was reported to CNB's corporate security department. (UMF No. 12.)

.

CNB's

decision not to open Plaintiff's account was based on (1) Plaintiff's harassing and abusive behavior, including physical threats; (2) Plaintiff's provision of inconsistent and unverified background information; and (3) Plaintiff's refusal to provide the required account-opening information. (UMF No. 13.)

.

Around

September of 2022, Plaintiff attempted to open a deposit account for Brivers at CNB's Pacific Palisades branch office.
(UMF No. 14.)

.

In

reviewing the 2022 application, CNB identified the Determination it made in 2018 in connection with the Water Garden branch. (UMF No. 15.)

.

On

October 19, 2022, Gordon, a CNB Division Manager, sent Plaintiff a letter advising that Brivers' 2022 application was denied based upon the 2018 incident. (UMF No. 16.)

.

CNB has

no record of Plaintiff submitting an application for a personal checking or deposit account, a mortgage, real estate financing, or a home equity loan at any time. (UMF No. 17-18.)

.

Neither

Rueda nor Gordon have ever met Plaintiff.
(UMF No. 19-20.)

.

CNB's

employees participate in racial sensitivity and discrimination training. (UMF no. 21.)

.

There is

no evidence that Defendants publicly humiliated or embarrassed Plaintiff. (UMF No. 22.)

Thus, Moving Defendants have

met their initial prima facie burdens of production and persuasion to demonstrate there are no triable issues of material fact that CNB did not unlawfully discriminate against Plaintiff in making its decision in 2018 not to open any accounts for her business.

b. Plaintiff's Evidence

Other than Plaintiff's

declaration, which cannot raise triable issues of material fact by virtue of the Court's evidentiary sanctions ruling, Plaintiff advances Jennifer Rueda's June 22, 2018 letter and the October 2022 letter.

First, the June 22, 2018 letter indicates:

As I

believe you were told, your on-line request was denied because the address you entered when you applied on-line did not match the address identified through a public records search.

You are

correct that you did provide a document with a physical address when you came to the branch. However, it was not a record acceptable to the bank. As I understand was explained to you at the branch, CNB needed something sent to your address by a recognized business such as a utility bill but you did not have any such documentation. I apologize for the misstatement in CNB's letter to you.

There

were also inconsistencies with respect to your employer. On line you indicated you were employed by Brivers Organic Burgers. At the branch you stated you were employed by the USPS.

You insisted another name be on the account when you had no documentation showing that was your name.

Again,
CNB is not prepared to open an account for you.

(Plaintiff's Exhibit 1.) Further, the October 2022 letter indicates:

I write
in response to your complaint submitted to City National Bank ("City National" or the "Bank") on September 29, 2022.

By way of
background, sometime in or around June 2018, you applied for a deposit account at City National Bank. At that time, you refused to provide your physical address, which is information we are required to obtain as a condition to opening a new account. City National bankers repeatedly requested the information from you and explained why it was necessary. During this exchange, you acted disrespectfully to our employees. As a result, the Bank made the determination that it could not meet your banking needs. Given this history, City National Bank will not open the account you are currently requesting.

We take
claims of discrimination very seriously and investigated your allegations that the bank behaved in such a manner. Your claim was unsubstantiated and therefore we deny the allegations you made against the bank.

(Plaintiff's Exhibit 3.)

The
Court finds these two letters consistent with Moving Defendants' position that racial discrimination was not a factor in determining not to conduct business with Plaintiff or her business entity, and thus, the Court finds that the

correspondence do not create triable issues of material fact.

Plaintiff

also points to a consent decree in United States of America v. City National Bank, Case No. CV 23-204-DMG(RAOx) in which CNB was accused of engaging in a pattern or practice of unlawful redlining and other discriminatory acts vis-à-vis home loans in violation of the Federal Housing Act and the Equal Credit Opportunity Act. (Plaintiff's Exhibit 4.) But that case is entirely unrelated to the instant case, which does not involve redlining or home loan discrimination. Accordingly, the Court finds the consent decree to be irrelevant under Evidence sections 350 and 352.

Similarly,

Plaintiff points to a Consent Order in In the Matter Of: City National Bank, Office of the Comptroller of the Currency case No. AA-ENF-2024-8, involving CNB's failure to identify and control for risks associated with money laundering, terrorist financing, and other such illicit financial activity. (Plaintiff's Exhibit 13.) Again, this case is unrelated to the instant case, which does not involve the inability to detect and deter money laundering, terrorist financing, or other such illicit financial activity. In fact, CNB flagged Plaintiff's inconsistent information and lack of documentation and then refused to open an account. Accordingly, the Court finds the consent decree to be irrelevant under Evidence Code sections 350 and 352.

Further,

Plaintiff has provided an internal CNB training presentation on how to identify microaggressions and unconscious biases at work. (Plaintiff's Exhibit 5.) That corroborates Moving Defendants' UMF No. 21 that CNB employees undergo discrimination sensitivity training, and thus, the Court finds that Exhibit 5 does not raise triable issues of material fact.

Plaintiff

also advances a complaint she made to the Consumer Financial Protection Bureau ("CFPB") about the 2022 incident under the pseudonym "Kimberly Tuck" (Plaintiff's Exhibit 11) and an internal June 5, 2023 email among CNB employees, indicating receipt of the CFPB complaint regarding a "Kimberly Tuck." (Plaintiff's Exhibit 7.) That email indicated there was no information for any "Kimberly Tuck" but there was a "Kat Tuck" in the system using the same address and phone number and a "Kimberly Tucker" Using the same phone number. Research into Kimberly Tucker revealed the same information from 2018, that Ms. Tucker had indicated her

employment as being with both U.S.P.S. and Brivers Organic Burgers, that Plaintiff refused provide the necessary documentation to open an account, and then became agitated with CNB staff.

Exhibits

7 and 11 corroborate Moving Defendants' chronicle that Plaintiff provided inconsistent identifying information that precluded CNB from opening the requested account.

Plaintiff

further advances an account statement for a Citi Priority Checking Account from July 1-July 31, 2022 for Plaintiff in her personal capacity and a CitiBank business credit card for Briver's Lax Snax.

(Plaintiff's Exhibit 12, 14.) But

Plaintiff's accounts with another bank are not relevant under Evidence Code sections 350 and 352.

In

summary, the Court concludes that Plaintiff has not met her burden of production to create any triable issues of material fact.

CONCLUSION AND ORDER

Finding Plaintiff has not met her burden to create any triable issues of material fact that Moving Defendants' decision not to open any accounts for Plaintiff was based on a racially discriminatory motive, the Court grants Moving Defendants' motion for summary judgment.

Further, the Court will enter the proposed Order and Judgment lodged on July 2, 2026 in conformity with the ruling.

Moving Defendants shall provide notice of the Court's ruling/order/Judgment, and file the notices with proofs of service forthwith.

DATED: September 24, 2026 _____/s/_____

Michael

E. Whitaker

Judge

of the Superior Court